

GZ: 2023-0.137.735 dated February 21, 2023 (Case number: DSB-D124.1473/22)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), case numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides on the data protection complaint of Mr. Ernst A*** (complainant) dated November 10, 2022, amended by submission dated December 9, 2022, against Mr. RA Mag. Stefan B*** (first respondent) regarding the alleged violation of the right to confidentiality, the alleged violation of the right to information, and the alleged violation of the right to access, as well as against Ms. Sofia C*** (second respondent), represented by the first respondent, regarding the alleged violation of the right to confidentiality and the alleged violation of the right to access as follows:

- The handling of the complaint is rejected due to obvious lack of merit.

Legal bases: Art. 51 para. 1, Art. 57 para. 1 lit. f, Art. 57 para. 4, as well as Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; § 1 para. 1 and para. 2 as well as § 24 para. 1 and para. 5 of the Data Protection Act (DSG), BGBl. I No. 165/1999 as amended.

REASONING

A. Submissions of the parties and procedural history

1. The complainant claimed in his (amended) complaint dated November 10, 2022, that he was violated by the first respondent in the right to confidentiality, the right to information, and the right to access, and by the second respondent in the right to confidentiality and the right to access. The complainant explained that he had approached both respondents with a request for information and had been informed that his data was being processed by the respondents. However, since he is not an affected party in the widely publicized warning wave regarding Google Fonts, it follows that either the information is incorrect or his data is being processed without a legal basis. Furthermore, the first respondent allegedly uses the tool Webalizer on his website, which is neither mentioned in the privacy policy published on the first respondent's website nor referenced in the context of the information provided.

2. The respondents stated in their two submissions dated January 3, 2023, and January 23, 2023, essentially that they had informed the complainant in a timely and sufficient manner by letter dated September 21, 2022. The respondents further stated that the complainant had offered to refrain from filing a complaint with the Data Protection Authority in exchange for a payment of €2,900.00 and submitted a corresponding letter.

3. In the course of the granted hearing, the complainant did not provide any further statement. A corresponding forwarding report is included in the file, and there is no error message from an email server.

B. Subject of the complaint

The subject of the complaint is the question of whether the complainant was violated by the first respondent in the right to confidentiality, the right to information, and the right to access, and by the second respondent in the right to confidentiality and the right to access. However, it must first be examined whether the conditions for a rejection of the complaint pursuant to Art. 57 para. 4 GDPR are met.

C. Findings of fact

The complainant approached the first respondent on August 18, 2022, and the second respondent on September 27, 2022, with a request for information.

The first respondent provided the complainant with information by letter dated September 22, 2022, and the second respondent provided the complainant with information by letter dated October 17, 2022.

The complainant subsequently sent the following letter to the respondents:

[Note from the editor: the graphic file (letter from the complainant) inserted at this point has been

removed, as it cannot be displayed in the RIS. It contains the following relevant content:

"Referring to your letters to me, I must unfortunately inform you that you are unlawfully processing my data, that you have not fulfilled your obligations under Art. 15 GDPR completely and correctly, and that your negligent handling of the topic of data protection not only massively annoys me but also causes me significant discomfort.

I am happy to declare my willingness to fully compensate the damage caused to me by you through a one-time payment of EUR 2,900.00, specifying the purpose "*****" within one week to my account IBAN AT****. In return, I commit to not filing a complaint with the data protection authority or any claim for damages against you in the competent court.

****Evidence Assessment:**** The findings result from the submissions of the parties as well as the presented, unobjectionable documents.

****D. From a legal perspective, it follows:****

According to Art. 57 para. 4 GDPR, the supervisory authority may demand a reasonable fee based on administrative costs for manifestly unfounded or, particularly in the case of frequent repetition, excessive requests, or refuse to act on the request. The filing of a complaint pursuant to Art. 77 para. 1 GDPR in conjunction with § 24 para. 1 DSG must in any case be qualified as a "request" in the sense of Art. 57 para. 4 GDPR, and this is also undoubtedly evident from Art. 78 para. 2 GDPR.

As established, the complainant offered the respondents to refrain from filing a complaint with the data protection authority in exchange for a payment of € 2,900.00. In this context, the data protection authority believes that there can be no actual need for legal protection on the part of the complainant, which is why the complaint in question is to be qualified as dishonest and the utilization of the data protection authority's services by the complainant as an abuse of rights.

The complaint was therefore to be rejected based on Art. 57 para. 4 GDPR due to obvious unfoundedness.

It was to be decided accordingly.